ORDINANCE NO # 565

An Ordinance for permitting golf carts/side by sides on certain city streets within the City limits of Rector, Arkansas

WHEREAS, it has come to the attention that certain individuals would like the ease and convenience of allowing these motorized vehicles;

WHEREAS, in reviewing other similarly situated town, and their allowance, the City Council has carefully reviewed terms and conditions to protect the safety of the citizens;

WHEREAS, with certain restrictions, the following shall be allowed in connection with State and Federal laws and regulations in place:

NOW THEREFORE BE IT ORDAINED:

1) The purpose of this ordinance is to permit the operation of golf carts on certain streets in the city limits of Rector, as authorized by A. C. A. 14-54-1410, as amended by Act 170 of 2013. This ordinance applies whenever a golf cart is operated on any street, subject to those exceptions stated herein.

2) A golf cart is defined to include a side-by-side utility vehicle which must have a steering wheel, side-by-side seating for at least two (2) people, and be driven at a speed not to exceed twenty (20) miles per hour. If such vehicle is being driven at a speed in excess of twenty (20) miles per hour, it shall not be considered a golf cart under this ordinance. All other provisions and conditions of this ordinance shall apply to the operation of said vehicles within the city limits. All go-carts are excluded from this ordinance.

3) **Operation of Carts** Golf carts may be operated upon the streets of the City of Rector by any person at least eighteen (18) years of age and have in his/her possession a valid operator's license.

4) **Prohibited streets** Owners of carts may not operate their golf carts on any city streets which are also designated as federal, state highways, or county roads. However, golf carts may cross federal, state highways or county roads.

5) **Equipment** Golf carts operated upon city streets shall be equipped with a slow moving vehicle sign or an orange flag at the rear of the cart which extends a minimum of twelve (12) inches above the top of the cart.

6) **Hours** Golf carts may only be operated on city streets between dawn and dusk unless equipped with headlights and taillights.

7) **Unlicensed vehicles** It shall be unlawful to operate an unregistered vehicle within the Rector corporate limits, except where specifically permitted. This regulation shall **exclude** vehicles used by emergency services, utility companies, and Fire Departments in performance of their duties.

8) **Registering of vehicle** The vehicle owner must register the vehicle with the City Clerk's office prior to July 1 of the current year prior to operating vehicle on city streets. There must be a signed statement releasing the city from all liability in case of an accident. The current tag/sticker registration must be displayed on the vehicle per instructions. The vehicle owner will be charged a fee of Twenty-Five Dollars ($25.00) for initial year, Twenty-Five Dollars ($25.00) for each year thereafter, and a Five Dollar ($5.00) replacement fee for lost or damaged sticker.

9) **Traffic Flow** The vehicle must not be an impediment to the normal flow of other vehicular traffic, and must use hand signals for turning and stopping.

10) **Traffic Laws** The operator must conform to all traffic laws dealing with motorized vehicles. Violators will be cited in accordance with current law.

11) **Penalty Provision** Any person, firm, or corporation violating any provisions of this ordinance shall be deemed guilty of a misdemeanor and upon conviction in the District Court of Clay County, Rector, shall be fined no less than One Hundred Dollars ($100.00) nor more than Five Hundred Dollars ($500.00) plus court costs will be assessed.

12) **Liability Insurance** The vehicle must be covered by a liability insurance policy with a required standard minimum set by the State of Arkansas for vehicles traveling on roadways.

PASSED AND APPROVED ON THIS 7th May **of 2018.**

Teresa L. Roope
Mayor

ATTEST:
Shelia Dale
City Clerk